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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/676,957	07/27/2010	Mordechai Klein	182904-17430200	6505
78018	7590	02/14/2012		
MDIP LLC POST OFFICE BOX 2630 MONTGOMERY VILLAGE, MD 20886-2630			EXAMINER CLARK, AMY LYNN	
			ART UNIT 1655	PAPER NUMBER
			MAIL DATE 02/14/2012	DELIVERY MODE PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No.	Applicant(s)	
	12/676,957	KLEIN, MORDECHAI	
	Examiner	Art Unit	
	Amy L. Clark	1655	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 25 December 2011.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☐ Claim(s) 1-6 and 11-26 is/are pending in the application.
- 5a) Of the above claim(s) 1-6 and 19-26 is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 11-18 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☒ The specification is objected to by the Examiner.
- 11) ☒ The drawing(s) filed on 08 March 2010 is/are: a) ☒ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☒ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☒ All b) ☐ Some * c) ☐ None of:
1. ☒ Certified copies of the priority documents have been received.
2. ☐ Certified copies of the priority documents have been received in Application No. ____.
3. ☒ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).
- * See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|---|--|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____ |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | 5) ☐ Notice of Informal Patent Application |
| 3) ☐ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date ____ | 6) ☐ Other: ____ |

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DETAILED ACTION

Acknowledgment is made of the receipt and entry of the amendment filed on 12/25/2011 with the cancellation of claims 7-10, and amended claims 11, 13, 14 and 16-26.

Election/Restrictions

Applicant's election with traverse of Group XI, claims 15-18 in the reply filed on 12/25/2011 is acknowledged. The traversal is with regards to the restriction between the products and the kit claims.

Based upon Applicant's election of the kit of Group XI, claims 15-18, claims 11-14 directed to pomegranate peel powder, a medical composition the a composition comprising at least one of pomegranate seed oil and pomegranate flower extract or pomegranate peel extract are hereby rejoined and fully examined for patentability under 37 CFR 1.104. Claims 1-6 and 19-26, directed to the invention(s) of a method of making pomegranate seed oil, a method for making pomegranate-flower extract, a method of preparing pomegranate peel extract, a method for making pomegranate inflorescence/peel extract, a method of making pomegranate peel powder, a method for treating/preventing skin sores, have NOT been rejoined.

Because a claimed invention previously withdrawn from consideration under 37 CFR 1.142 has been rejoined, **the restriction requirement between groups VI-XI as set forth in the Office action mailed on 10/25/2011 is hereby withdrawn.** In view of the withdrawal of the restriction requirement as to the rejoined inventions, applicant(s) are advised that if any claim presented in a continuation or divisional application is anticipated by, or includes all the limitations of, a claim that is allowable in the present application, such claim may be subject to provisional statutory and/or nonstatutory double patenting rejections over the claims of the instant application. Once the restriction requirement is withdrawn, the provisions of 35 U.S.C. 121 are no longer applicable. See *In re Ziegler*, 443 F.2d 1211, 1215, 170 USPQ 129, 131-32 (CCPA 1971). See also MPEP § 804.01.

Applicant's election of Group XI, claims 11-18 in the reply filed on 12/25/2011 is acknowledged. Because applicant did not distinctly and specifically point out the supposed errors in the restriction

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requirement between the products and methods, the election between these inventions has been treated as an election without traverse (MPEP § 818.03(a)).

Claims 1-6 and 19-26 are withdrawn from further consideration pursuant to 37 CFR 1.142(b) as being drawn to a nonelected invention, there being no allowable generic or linking claim. Election was made **without** traverse in the reply filed on 12/25/2011.

Claims 11-18 are currently under examination.

Specification

The abstract of the disclosure does not commence on a separate sheet in accordance with 37 CFR 1.52(b)(4). A new abstract of the disclosure is required and must be presented on a separate sheet, apart from any other text.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claims 11-14 are rejected under 35 U.S.C. 102(b) as being anticipated by Lansky (N, WO 2094303 A1).

Lansky teaches a pomegranate seed oil product and a pomegranate peel product, wherein the pomegranate peel can be part of a fermented pomegranate juice product (See page 3, lines 20-27 and page 4, lines 4-10) (which reads on the limitations of claim 11-13) and that the pomegranate seed oil and peel extract can be used in a pharmaceutical composition (which reads on a medical composition).

Lansky does not expressly teach that the pomegranate peel extract is obtained by extraction with ethanol. However, it should be noted that the claims constitute Product-by-Process type claims. In

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Product-by-Process type claims, the process of producing the product is given no patentable weight since it does not impart novelty to a product when the product is taught by the prior art. See *In re Thorpe*, 227 USPQ 964 (CAFC 1985); *In re Marosi*, 218 USPQ 289, 292-293 (CAFC 1983) and *In re Brown*, 173 USPQ 685 (CCPA 1972). Consequently, even if a particular process used to prepare a product is novel and unobvious over the prior art, the product *per se*, even when limited to the particular process, is unpatentable over the same product taught in by the prior art. See *In re King*, 107 F.2d 618, 620, 43 USPQ 400, 402 (CCPA 1939); *In re Merz*, 97 F.2d 599, 601, 38 USPQ 143-145 (CCPA 1938); *In re Bergy*, 563 F.2d 1031, 1035, 195 USPQ 344, 348 (CCPA 1977) *vacated* 438 US 902 (1978); and *United States v. Ciba-Geigy Corp.*, 508 F. Supp. 1157, 1171, 211 USPQ 529, 543 (DNJ 1979). Finally, since the Patent Office does not have the facilities for examining and comparing Applicant's composition with the compositions of the prior art reference, the burden is upon Applicant to show a distinction between the material, structural and functional characteristics of the claimed composition and the composition of the prior art. See *In re Best*, 562 F.2d 1252, 195 USPQ 430 (CCPA 1977).

It is also noted that the reference does not teach that the composition can be used in the manner instantly claimed, however, the intended use of the claimed composition does not patentably distinguish the composition, *per se*, since such undisclosed use is inherent in the reference composition. In order to be limiting, the intended use must create a structural difference between the claimed composition and the prior art composition. In the instant case, the intended use does not create a structural difference, thus the intended use is not limiting.

"[T]he discovery of a previously unappreciated property of a prior art composition, or of a scientific explanation for the prior art's functioning, does not render the old composition patentably new to the discoverer." *Atlas Powder Co. v. Ireco Inc.*, 190 F.3d 1342, 1347, 51 USPQ2d 1943, 1947 (Fed. Cir. 1999). Thus the claiming of a new use, new function or unknown property which is inherently present in the prior art does not necessarily make the claim patentable. *In re Best*, 562 F.2d 1252, 1254, 195 USPQ 430, 433 (CCPA 1977). See also MPEP § 2112.01 with regard to inherency and product-by-process claims.

Therefore, the reference anticipates the instantly claimed subject matter.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

Claims 15-18 are rejected under 35 U.S.C. 103(a) as being unpatentable over Mohammad (U), in view of Mohammad Azam Khan (V).

Mohammad teaches a composition for treating gingival ulcers comprising a fine powder of Punica granatum (pomegranate) fruit rind and Punica granatum (pomegranate) flower.

Mohammad Azam Khan teaches a composition in the form of a medicated oily preparation comprising Punica granatum (pomegranate) seed oil solution for local administration on an affected part with malignant ulcers (which reads on the limitations of step d).

Abu teaches a therapeutic drug/composition in the form of a thick paste for local application to a malignant ulcer comprising dried and powdered Punica granatum (pomegranate) fruit rind (peel) (which reads on the limitations of step d).

Although the references do not expressly teach a kit or instructions for applying the instantly claimed ingredients, nonfunctional descriptive material cannot render nonobvious an invention that would have otherwise been obvious. *In re Ngai*, ³⁶⁷ F.3d 1336, 1339, 70 USPQ2d 1862, 1864 (Fed. Cir. 2004) (combining printed instructions and an old product into a kit will not render the claimed invention nonobvious even if the instructions detail a new use for the product).[<] Cf. *In re Gulack*, 703 F.2d 1381, 1385, 217 USPQ 401, 404 (Fed. Cir. 1983) (when descriptive material is not functionally related to the substrate, the descriptive material will not distinguish the invention from the prior art in terms of patentability).

It would have been obvious to orally administer the composition comprising pomegranate flower and peel used in the method taught by Mohammad and to apply a composition comprising a

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pomegranate oil extract and/or pomegranate peel powder directly to an ulcer because at the time the invention was made, it was known that a tablet comprising pomegranate flower and peel could be orally administered to treat ulcers and that a medical composition comprising pomegranate oil extract and/or pomegranate peel powder could be directly administered to an ulcer as clearly taught by Mohammad, Mohammad Azam Khan and Abu.

Thus, an artisan of ordinary skill would reasonably expect that administering a composition comprising pomegranate flower and peel and to then apply a composition comprising a pomegranate oil extract and/or pomegranate peel powder directly to an ulcer would provide an even more effective, faster and more complete treatment for ulcers. This reasonable expectation of success would motivate the artisan to employ a composition comprising pomegranate flower and peel in combination with a composition comprising a pomegranate oil extract and/or pomegranate peel powder directly to an ulcer to more effectively treat ulcers based upon the beneficial teachings of Mohammad, Mohammad Azam Khan and Abu.

Moreover, it would have been merely a matter of judicious selection to one of ordinary skill in the art at the time the invention was made to modify the referenced composition comprising pomegranate flower and peel to provide an atomized composition because it would have been well in the purview of one of ordinary skill in the art practicing the invention to pick and choose a suitable form of oral administration for more direct and effective treatment of oral ulcers. Thus, the claimed invention is no more than the routine optimization of a result effect variable.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Conclusion

No claims are allowed.

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Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L. Clark/
Primary Examiner, Art Unit 1655

Notice of References Cited	Application/Control No. 12/676,957	Applicant(s)/Patent Under Reexamination KLEIN, MORDECHAI	
	Examiner Amy L. Clark	Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
	A	US-			
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N	WO 2094303 A1	11-2002	World Intellect	LANSKY, EPHRAIM P	
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Mohammad Najmul Ghani Khan. "Qurs Barae Lissah-e-daamiyah". Qaraabaadeen Najm-al-Ghani (20th century AD), Munshi Nawal Kishore, Lucknow, (Second Edition) 1928 AD, page 555.
	V	Mohammad Azam Khan. Muheet-e-Azam, "Tila-e- Anaar Dana". Vol. I (19th century AD), Matba Nizami, Kanpur, 1896 AD, page 201.
	W	Abu Ali Ibn-e-Sina, "Zimaad-e- Adas Khaas". Al-Qaanoon-fil-Tibb, Vol. II (11th century AD), Institute of History of Medicine and Medical Research, Jamia Hamdard, New Delhi-62, 1987 AD, page 277.
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.



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BIB DATA SHEET

CONFIRMATION NO. 6505

SERIAL NUMBER 12/676,957	FILING or 371(c) DATE 07/27/2010 RULE	CLASS 424	GROUP ART UNIT 1655	ATTORNEY DOCKET NO. 182904-17430200		
APPLICANTS Mordechai Klein, Ramat Gan, ISRAEL; ** CONTINUING DATA ***** This application is a 371 of PCT/IL08/01203 09/07/2008 ** FOREIGN APPLICATIONS ***** ISRAEL 185775 09/06/2007 ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** ** SMALL ENTITY ** 08/11/2010						
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☐ No Verified and /AMY LYNN CLARK/ Acknowledged Examiner's Signature		☐ Met after Allowance Initials	STATE OR COUNTRY ISRAEL	SHEETS DRAWINGS 10	TOTAL CLAIMS 26	INDEPENDENT CLAIMS 8
ADDRESS MDIP LLC POST OFFICE BOX 2630 MONTGOMERY VILLAGE, MD 20886-2630 UNITED STATES						
TITLE Pomegranate-derived Products for the Treatment of Skin Sores and Lesions						
FILING FEE RECEIVED 1482	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees			
			☐ 1.16 Fees (Filing)			
			☐ 1.17 Fees (Processing Ext. of time)			
			☐ 1.18 Fees (Issue)			
			☐ Other _____			
				☐ Credit		

EAST Search History

EAST Search History (Prior Art)

Ref #	Hits	Search Query	DBs	Default Operator	Plurals	Time Stamp
L9	630	(pomegranate or punica)	USPAT	AND	ON	2012/01/28 14:46
L10	25	(pomegranate or punica)same(seed and peel and oil)	USPAT	AND	ON	2012/01/28 14:48
L11	316	(pomegranate or punica) and @pd<"20070906"	USPAT	AND	ON	2012/01/28 14:55
L12	45	(pomegranate or punica) and (seed or pip or pit) and (peel or skin) and flower and @pd<"20070906"	USPAT	AND	ON	2012/01/28 14:56
L13	180	(pomegranate or punica) and (seed or pip or pit) and (peel or skin) and flower and @pd<"20070906"	US-PGPUB; USPAT; EPO; JPO	AND	ON	2012/01/28 14:57
L14	1021	(pomegranate or punica) and @pd<"20070906"	US-PGPUB; USPAT; EPO; JPO	AND	ON	2012/01/28 14:57
L15	505	(pomegranate or punica) and (burn or wound or cut or abrasion or heal) and @pd<"20070906"	US-PGPUB; USPAT; EPO; JPO	AND	ON	2012/01/28 15:10
L16	537	(pomegranate or punica) and (burn or wound or cut or abrasion or heal or ulcer) and @pd<"20070906"	US-PGPUB; USPAT; EPO; JPO	AND	ON	2012/01/28 15:11
L17	544	(pomegranate or punica) and (burn or wound or cut or abrasion or heal or ulcer or sore) and @pd<"20070906"	US-PGPUB; USPAT; EPO; JPO	AND	ON	2012/01/28 15:14
L18	270	(pomegranate or punica) and (burn or wound or abrasion or heal or ulcer or sore) and @pd<"20070906"	US-PGPUB; USPAT; EPO; JPO	AND	ON	2012/01/28 15:25

1/28/2012 3:54:10 PM

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Search Notes 	Application/Control No. 12676957	Applicant(s)/Patent Under Reexamination KLEIN, MORDECHAI
	Examiner AMY L CLARK	Art Unit 1655

SEARCHED			
Class	Subclass	Date	Examiner
NONE	NONE		

SEARCH NOTES		
Search Notes	Date	Examiner
EAST- See Search Notes	2/5/2011	ALC
Google and TKDL: Search for terms including Punica/Pomegranate and peel/skin/rind and seed/pip/pit and flower/petal	2/5/2011	ALC
Inventor's Name Searched in PALM	2/5/2011	ALC

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner
NONE	NONE		

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